

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Commissioner Sharon M Anderson
Temporary Judge Catherine Evans

Date: 07/29/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	Nunes – Trust; 30-2024-01396741	
2	Marifet – Elder Abuse; 30-2025-01484031	Motion for Attorney Fees Respondent Jangis Marifet ("Respondent") brings this Motion for Attorney Fees and Costs (ROA 36) pursuant to Welfare & Institutions Code § 15657.03(t). Pursuant to Welfare & Institutions Code § 15657.03(t), the prevailing party in a request for an Elder Abuse Restraining Order ("EARO") "may be awarded court costs and attorney's fees." Respondent is the prevailing party in this case, having successfully defended against the Request for Elder or Dependent Adult Abuse Restraining Order filed by Petitioner Hamit Marifet. (ROAs 1 and 33.) Thus, Respondent is entitled to fees and costs pursuant to Welfare and Institutions Code section 15657.03(t). A motion for attorney's fees must be filed <u>and served</u> within the time for filing a notice of appeal. (Cal. Rules of court, rule 3.1702(b).) Here, the court's minute order of 12/12/25 is an appealable order. The motion was timely filed on 2/9/26. On 06/17/2026, the court heard the matter and continued it to today's date so a valid, timely proof of service could be filed. However, there is no proof of service of this motion. As such, the